



General Assembly

Substitute Bill No. 5040

February Session, 2026



**AN ACT IMPLEMENTING THE GOVERNOR'S BUDGET
RECOMMENDATIONS FOR HEALTH AND HUMAN SERVICES.**

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Subsection (b) of section 17b-191 of the 2026 supplement to
2 the general statutes is repealed and the following is substituted in lieu
3 thereof (*Effective July 1, 2026*):

4 (b) The state-administered general assistance program shall provide
5 cash assistance of [(1)] two hundred sixty-nine dollars per month [for an
6 unemployable person upon determination of such person's
7 unemployability; (2) two hundred dollars per month for a transitional
8 person who is required to pay for shelter; and (3) fifty dollars per month
9 for a transitional person who is not required to pay for shelter] to
10 persons eligible for the program. The standard of assistance paid for
11 individuals residing in rated boarding facilities shall remain at the level
12 in effect on August 31, 2003. No person shall be eligible for cash
13 assistance under the program if eligible for cash assistance under any
14 other state or federal cash assistance program. The standards of
15 assistance set forth in this subsection shall be subject to annual increases,
16 as described in subsection (b) of section 17b-104.

17 Sec. 2. Subsection (f) of section 17b-274d of the general statutes is
18 repealed and the following is substituted in lieu thereof (*Effective July 1,*

19 2026):

20 (f) Nonpreferred drugs in the classes of drugs included on the
21 preferred drug lists shall be subject to prior authorization. Prior
22 authorization is not required for any mental-health-related drug that
23 has been filled or refilled, in any dosage, at least one time in the one-
24 year period prior to the date the individual presents a prescription for
25 the drug at a pharmacy. If prior authorization is granted for a drug not
26 included on a preferred drug list, the authorization shall be valid for one
27 year from the date the prescription is first filled. [Antiretroviral classes
28 of drugs shall not be included on the preferred drug lists.]

29 Sec. 3. (NEW) (*Effective July 1, 2026*) (a) The Commissioner of Social
30 Services may periodically review available data on the clinical
31 effectiveness of outpatient prescription drugs covered under the
32 Medicaid program that are projected to exceed (1) a net cost per
33 consumer, after factoring in rebates, of twenty-five thousand dollars per
34 year, or (2) an annual aggregate cost, after factoring in rebates to the
35 medical assistance program, of ten million dollars. The commissioner
36 may, within available appropriations, contract with a third party to
37 conduct a comparative effectiveness review of any such outpatient
38 prescription drug. For purposes of this section, "rebate" means an
39 amount sent to the state by a prescription drug manufacturer to offset
40 the cost of outpatient prescription drugs covered by the Medicaid
41 program.

42 (b) Any such comparative effectiveness review shall include, but
43 need not be limited to: (1) Clinical efficacy and outcomes; (2)
44 information relating to the pricing of the outpatient prescription drug,
45 including, but not limited to, information relating to prices paid by other
46 states or developed nations; (3) such drug's net price to the Medicaid
47 program as compared to its therapeutic benefits, including, but not
48 limited to, the seriousness and prevalence of the disease or condition
49 that is treated by the drug; (4) the extent of utilization of such drug; (5)
50 the likelihood that the use of such drug will reduce the need for other

51 medical care; (6) the number of manufacturers that produce such drug;
52 and (7) whether there are pharmaceutical equivalents of such drug.

53 (c) The Commissioner of Social Service may make public and share
54 the results of any comparative effectiveness review with any entity,
55 including any multistate prescription drug purchasing collaborative in
56 which the state is a participating member, in order to negotiate
57 additional supplemental rebate agreements beyond any rebates
58 required under federal law.

This act shall take effect as follows and shall amend the following sections:		
Section 1	<i>July 1, 2026</i>	17b-191(b)
Sec. 2	<i>July 1, 2026</i>	17b-274d(f)
Sec. 3	<i>July 1, 2026</i>	New section

Section 1	<i>July 1, 2026</i>	17b-191(b)
Sec. 2	<i>July 1, 2026</i>	17b-274d(f)
Sec. 3	<i>July 1, 2026</i>	New section

Statement of Legislative Commissioners:

In Section 3(a)(2) and 3(b), references to "prescription drugs" were changed to "outpatient prescription drugs" or "such drug" for consistency, and the provisions of Section 3(c) were rewritten for clarity.

HS *Joint Favorable Subst.*